

whether the plaintiff will be able to prove the facts alleged in the complaint. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1061.)

As an initial matter, the Motion to strike the Second, Third, and Fourth Causes of Action is DENIED on the grounds that a motion to strike is not the appropriate method for attacking an entire cause of action, as that is the function of a demurrer.

With respect to the remainder of the Motion, Defendants argue in Opposition that the out-of-state contracts support his causes of action in the Cross-Complaint and, as alleged in the Cross-Complaint, those contracts are part of the same continuous course of conduct by the same attorney against the same client and they arose from the same attorney-client relationship that produced the Settlement Agreement, which is the subject of the Complaint.

The Court, assuming the truth of all well-pleaded allegations in the Cross-Complaint, as it must, does not find the out-of-state contracts irrelevant or unrelated to the causes of action asserted therein.

Thus, the Motion is DENIED.

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In The Matter of Andrew Johannes Spaulding

26CV000480

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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Thomas Kensok et al v. Alison A. Barstad

26CV000834

MOTION TO VACATE STAY OF PROCEEDINGS

TENTATIVE RULING: The matter is CONTINUED to July 9, 2026, at 8:30 a.m. in Dept. A to allow Plaintiffs to file and serve, no later than June 25, 2026, proof that they provided State Bar-approved notice, on the State Bar's mandated form, regarding Defendant's right to arbitrate fees, pursuant to Business & Professions Code section 6201, subdivision (a), and Rules of State Bar, rule 3.501(B).

Plaintiffs Synergist Law, P.C. and Law Offices Of Thomas Kensok (collectively, "Plaintiffs") move, pursuant to Business and Professions Code sections 6200-6206 and Code of Civil Procedure section 1281.2, for an order: (1) Overruling Defendant's Notice of Stay of Proceedings (Judicial Council Form CM-180) filed on May 4, 2026; (2) Vacating any stay of proceedings imposed or claimed; (3) Finding that Defendant Alison A. Barstad waived her right to mandatory fee arbitration by filing her Answer on May 4, 2026, before service of her Request

for Arbitration upon Plaintiffs was perfected on May 8, 2026; and (4) Ordering this action to proceed to determination on the merits.⁴

Plaintiffs failed to provide adequate notice of the hearing date. (See Code Civ. Proc., §§ 1005, subd. (b) and 1010.6, subd. (a)(3)(B).) However, Defendant waived any objection to the defect by failing to raise such objection and by submitting opposition papers addressing the substance of Plaintiffs' motion. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697, quoting *Tate v. Super. Ct.* (1975) 45 Cal.App.3d 925, 930.)

A prerequisite to the relief requested by Plaintiffs is that Plaintiffs' counsel "provide[d] [Defendant] with the State Bar-approved notice regarding [Defendant's] right to arbitrate Fees..." (Rules of State Bar, rule 3.501(B); see also § 6201, subd. (a).) "The written notice shall be in the form that the board of trustees prescribes, and shall include a statement of the client's right to arbitration under this article." (§ 6201, subd. (a).) The State Bar-approved notice form is therefore a mandatory form. Indeed, the form is available and downloadable from the State Bar website: https://www.calbar.ca.gov/sites/default/files/2025-09/2013_NoticeofClientsRightstoArb-Mar2013.pdf.

The Court must make this affirmative finding—that Plaintiffs' counsel provided the State Bar-approved Notice to Defendant—before it can turn to the inquiry of Defendant's waiver of arbitration. (See § 6201, subd. (b) ["[Defendant's failure to request arbitration] prior to the filing of an answer or equivalent response *shall be deemed a waiver of the client's right to arbitration under the provisions of this article if notice of the client's right to arbitration was given pursuant to subdivision (a).*"] [Emphasis added]; Rules of State Bar, rule 3.502(A)(3) ["A Client's right to request or maintain Fee Arbitration is waived *if ... the Client receives the State Bar-approved notice regarding a Client's right to arbitrate Fees* but does either of the following before submitting a Request for Arbitration...."] [Emphasis added].)

Plaintiffs' Motion contends that they "served Defendant with the Notice of Client's Right to Fee Arbitration pursuant to section 6201(a)." (Memorandum, 5:1-2.) Plaintiffs do not submit evidence of the "Notice of Client's Right to Fee Arbitration" which was purportedly served on Defendant. Defendant does not dispute it in Opposition. (See Opposition, 2:19-22.) However, the only evidence of the notice that was purportedly served on Defendant is provided with Defendant's Opposition, and gives the Court pause as to whether Plaintiffs provided the State Bar-approved Notice Form to Defendant.

Specifically, Defendant attaches, as Exhibit A, "a true and correct copy of the Notice of Client's Right to Arbitration." (Declaration of Alison A. Barstad ISO Opposition, ¶ 6 ("Def's Opp. Decl.")). Exhibit A only contains emails between the parties, including one from Plaintiffs' counsel on January 12, 2026, at 2:46 PM, wherein Plaintiffs' counsel states: "Because you have now formally asserted a fee dispute, I am providing you with the Notice of Client's Right to Fee Arbitration pursuant to the State Bar rules." (*Id.*, Exh. A.) The email continues with a couple sentences regarding the arbitration, but does not refer to the governing statute. (*Ibid.*) There is no indication that any form was attached to this email, and it is unclear whether any form was sent under separate cover.

⁴ All subsequent statutory references are to the Business & Professions Code unless otherwise specified.

Because Plaintiffs' requested relief is contingent upon Plaintiffs' compliance with the abovementioned notice requirements, and because Plaintiffs did not present any evidentiary support to establish their compliance and, instead, the only evidence presented establishes non-compliance, the Court is not authorized to grant the requested relief on the present record. However, given that Defendant does not raise any defect with the notice she was provided, and because Plaintiffs assert (albeit without evidentiary support, see Memorandum, 4:9-10, 5:1-2) that they provided notice in accordance with section 6201, subdivision (a), the Court elects to grant a continuance to allow Plaintiffs an opportunity to serve and file proof of such compliant notice.

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In The Matter of Joshua Zachary Coundjeris

26CV000901

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on April 28, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to June 30, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.